



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 3 - 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11429

EXPIRATION DATE: April 30, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Olin Corporation
Stamford, CT
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of Toluene Diisocyanate, Division 6.1 material, in UN 1A1 drums on which the hazard label is not in compliance with the regulations due to the color of the label. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 107, Subpart B, Appendix B (1); Section 172.300(c), 172.407(d) (2), 172.430(b) and 176.52 insofar as labels do not meet the color requirements. Except for the transposition of colors, the labels are technically correct.
5. BASIS: This emergency exemption is based on Olin Corporation's application dated February 27, 1995, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary for the protection of life.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	ID Number	Packing Group
Toluene diisocyanate	6.1	UN2078	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are UN 1A1 drums which are contained in approximately 21 freight containers which are assigned the following numbers: APLS 273853, APLS 286418, EISU 3087241, EISU 3338434, EISU 3479068, GSTU 3412917, ICSU 374245, ICSU 476225, ICSU 4703029, KLTU 106525, KLTU 109096, KLTU 109603, NYKU 2037013, NYKU 2093547, NYKU 2196720, NYKU 2202735, TEXU 2895223, TEXU 3210170, TRIU 2071454, TRIU 3324808, TRIU 363941.

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b. LABELS - Olin Corporation is authorized to ship 21 freight containers containing UN 1A1 drums of toluene diisocyanate that have poison labels that do not meet the requirements of 49 CFR 172.407(d)(2) and 172.430(b). The symbols test and numerals on the labels are shown in white while the background color of the labels is black. The labels comply with the regulations in all other respects. Drums may not be reshipped except as specified in 8a below.

8. SPECIAL PROVISIONS:

a. Persons who receive the freight containers covered by this exemption may reoffer them for transportation provided the drums in the freight containers are not removed therefrom during transportation and storage incidental to transportation and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. The marking requirements of 49 CFR Part 107, Subpart B, Appendix B (1) and 172.300(c) are hereby waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 3 - 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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